

Plaintiff to file and serve the referenced narrowed lists within 10 days of this order.

Plaintiff's discovery as to Defendants Rocket Close, LLC and Rocket Companies, Inc. shall proceed within no more than 50 RFAs and 35 SROGs per Defendant, consistent with Plaintiff's narrowed priority lists referenced in her opposition.

5.

CASE #	CASE NAME	HEARING NAME
CVPS2508295	LITTLE VS ROCKET CLOSE, LLC	PLAINTIFF'S MOTION FOR RECONSIDERATION OF PRELIMINARY INJUNCTION PURSUANT TO CCP § 1008(B)

Tentative Ruling: No tentative ruling. A hearing shall be conducted.

6.

CASE #	CASE NAME	HEARING NAME
CVPS2508945	ZADEII VS BIRDSALL	DEMURRER ON 1ST AMENDED COMPLAINT FOR OTHER COMPLAINT) OF GHOLAM ZADEII, M.D. BY GREGORY PHILLIP BIRDSALL, KANDICE KAY BIRDSALL

Tentative Ruling: A general demurrer lies where the pleading does not state facts sufficient to constitute a cause of action. (C.C.P. § 430.10(e).) In evaluating a demurrer, the court gives the pleading a reasonable interpretation by reading it as a whole and all of its parts in their context. (*Moore v. Regents of University of California* (1990) 51 Cal.3d 120, 125.) The court assumes the truth of all material facts which have been properly pleaded, of facts which may be inferred from those expressly pleaded, and of any material facts of which judicial notice has been requested and may be taken. (*Crowley v. Katleman* (1994) 8 Cal.4th 666, 672.)

However, a demurrer does not admit contentions, deductions or conclusions of fact or law. (*Daar v. Yellow Cab Company* (1967) 67 Cal.2d 695, 713.) If the complaint fails to state a cause of action, the court must grant the plaintiff leave to amend if there is a reasonable possibility that the defect can be cured by amendment. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.)

A special demurrer lies where the pleading is uncertain, ambiguous, or unintelligible. (C.C.P. § 430.10(f).) "A demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures." (*Khoury v. Maly's of Cal., Inc.* (1993) 14 Cal.App.4th 612, 616.) As a result, a special demurrer for uncertainty is not intended to reach failure to incorporate sufficient facts in the pleading but is directed only at uncertainty existing in the allegations already made. (*People v. Taliaferro* (1957) 149 Cal.App.2d 822, 825.) Where a complaint is sufficient to state a cause of action and to apprise defendant of issues he or she is to meet, it is not properly subject to a special demurrer for uncertainty. (*Ibid.*)